

1.	22CV0981	KELLY KOHLSTEDT VS. WALMART INC
MOTION TO COMPEL NEUROPSYCHOLOGICAL EXAMINATION OF PLAINTIFF, MOTION TO REOPEN DISCOVERY		

Motion to Compel Neuropsychological Examination of Plaintiff

A defendant generally may obtain a mental examination of a plaintiff if the plaintiff has placed his or her mental condition in controversy. (§ 2032.020, subd. (a).) To obtain discovery by a mental examination, the defendant must seek leave of court, with the motion specifying “the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.” (§ 2032.310, subds. (a) & (b).) The court may order the mental examination only on a showing of good cause. (§ 2032.320, subd. (a).) Its order granting the examination must specify certain details of the examination, including “the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.” (Id., subd. (d).) Both the examiner and examinee “have the right to record a mental examination by audio technology.” (§ 2032.530.)

These parties do not dispute the propriety of the request by Defendant for Plaintiff to complete the exam other than those objections addressed below. Rather, the issue surrounds the parameters of the exam and what will be discoverable from the exam, i.e. testing questions and answers and other material. Thus, the court grants the request to compel the neuropsychological exam with parameters discussed below. The court rejects the arguments of the Plaintiff that the IME should be prohibited as the discovery cutoff has passed. The delay resulted from attempts to negotiate the terms under which testing would be completed. Plaintiff made demands regarding the parameters of the examination which were a significant factor in those delays. Additionally, the court will not deny the request based on the recording demand or parameters. The statute requires leave of the court before such an examination is undertaken to allow the court to set the parameters for the examination. The main issues of dispute regarding the parameters are:

Recording:

The code entitles audio recording of the examination. The court will order the examination to be recorded via audio technology only as required. The written portions of the exam shall not be audio recorded other than the oral directions if any. If there is an issue with the Plaintiff’s ability to complete the written portion of the test in writing that issue was not raised. Were that to occur the provider is ordered to record the testing and maintain said recording pending further order of the court.

Testing materials:

Both sides cite *Randy's Trucking, Inc. v. Super Ct.* (2023) 91 Cal.App.5th 818 for their position regarding testing materials. That court stated:

The appellate court nevertheless recognized that “[w]hile there is no express statutory authority” for the plaintiff’s position, “neither is there statutory authority precluding a trial court, in its discretion, from ordering the disclosure of the written test questions and answers.” (Carpenter, *supra*, 141 Cal.App.4th at p. 271, citing *Golfland Entertainment Centers, Inc. v. Superior Court* (2003) 108 Cal.App.4th 739, 747 (Golfland).) The plaintiff argued the discretion to disclose the materials should be exercised because he could not meaningfully exercise his rights to take discovery of and cross-examine the defendant’s expert witnesses without the test questions and answers on which the experts’ opinions are based, citing section 2034.410 and Evidence Code section 721, subdivision (a). (Carpenter, at pp. 271–272.) The plaintiff further argued the disclosure of these materials would protect against abuse and subsequent disputes over what occurred. (*Id.* At p. 272.)

The court has discretion to order discovery of testing materials, raw data, etc pursuant to the *Randy's Trucking* case. The court is not required to do so nor does the *Randy's Trucking* case stand for that position. The court will not require that raw testing data, questions or answers to any psychological testing be provided to counsel or any non-licensed professional entitled to maintain such data pending further order of the court. Absent a showing that the specific facts and circumstances of this matter necessitate such an order, the court declines to require such disclosure. All testing data is to be discovered to Plaintiff’s expert for review including but not limited to any psychological testing questions and answers and any raw testing data.

Motion to Reopen Discovery

The court has discretion to reopen discovery pursuant to CCP § 2024.050(a). As the court has granted the request to compel the neuropsychological examination, the court will reopen discovery for the purpose of completing the exam. As discussed above, the parties engaged in negotiations for months to resolve the parameters of the examination. While a motion to compel the court to resolve the issues sooner would have been prudent, parties engaged in good faith efforts to meet and confer, and the court will not deny the request due to delay based on such efforts.

TENTATIVE RULING #1: THE MOTION TO COMPEL NEUROPSYCHOLOGICAL EVALUATION IS GRANTED. THE MOTION TO REOPEN DISCOVERY IS ALSO GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.

May 29, 2026
Dept. 9
Tentative Rulings

RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.